

This form contains Restricted Information.



☐ CIRCUIT COURT ☐ DISTRICT COURT OF MARYLAND FOR _____ City/County

Located at _____ Telephone _____

Court Address

Case No. _____

1st Case Listed

Maria-Alejandra O'Shaughnessy-Whitfield

Petitioner

**PETITION FOR SHIELDING UNDER MD SECOND CHANCE ACT
(Criminal Procedure §§ 10-301 through 10-306)**

You must file a Notice Regarding Restricted Information Pursuant to Rule 20-201.1 (form MDJ-008) with this submission.

I, Maria-Alejandra O'Shaughnessy-Whitfield, 1968-12-31 petition under Md. Rule
Name Date of Birth

16-941 shielding of certain criminal convictions as authorized by law on the grounds stated below:

1. Petitioner was convicted of the following offense(s) in the following cases:

☐ Disorderly conduct under § 10-201(c)(2) of the Criminal Law Article, Case No(s): _____

☐ Disturbing the peace under § 10-201(c)(4) of the Criminal Law Article, Case No(s): _____

☐ Failure to obey a reasonable and lawful order under § 10-201(c)(3) of the Criminal Law Article, Case No(s): _____

☐ Malicious destruction of property in the lesser degree under § 6-301 of the Criminal Law Article, Case No(s): _____

☐ Trespass on posted property under § 6-402 of the Criminal Law Article, Case No(s): _____

☐ Possessing or administering a controlled dangerous substance under § 5-601 of the Criminal Law Article, Case No(s): _____

☐ Possessing or administering a noncontrolled substance under § 5-618(a) of the Criminal Law Article, Case No(s): _____

☐ Use of or possession with intent to use drug paraphernalia under § 5-619(c)(1) of the Criminal Law Article, Case No(s): _____

☐ Driving without a license under § 16-101 of the Transportation Article, Case No(s): _____

☐ Driving while privilege is canceled, suspended, refused, or revoked under § 16-303 of the Transportation Article, Case No(s): _____

☐ Driving while uninsured under § 17-107 of the Transportation Article, Case No(s): _____

☐ Prostitution (not assignation) under § 11-303 (formerly § 11-306(a)(1)) of the Criminal Law Article, Case No(s): _____

2. Petitioner was not convicted of an offense arising from the same incident, transaction, and/or set of facts that is not eligible for shielding.

3. At least three (3) years have passed since the petitioner has satisfied the sentence(s) - including parole, probation, and/or mandatory supervision - for all convictions for which shielding is requested, and petitioner has not been convicted of a new crime during this time period.

4. There are no pending criminal charges against the petitioner.

5. This petitioner has not previously been granted shielding.

6. This petition is to be shielded by the clerk.

Signature of Attorney Attorney Number Date

Printed Name

Street Address

City, State, Zip Telephone Number

E-mail Cell Phone Number

Signature of Petitioner Date

Maria-Alejandra O'Shaughnessy-Whitfield

Printed Name

1188 Upper Notch Crossing Road, Apartment 14B

Street Address

Prince Frederick, Maryland 20678-2214

City, State, Zip Telephone Number

E-mail Cell Phone Number

Notice to Victim(s): You have the right to offer objections or additional information relevant to the petition to shield criminal records under the Md. Second Chance Act in all proposed actions. Submit your information in writing to the court listed above. The court may take action as soon as 30 days after the petition is served.



☐ SUPREME COURT OF MARYLAND ☐ APPELLATE COURT OF MARYLAND

☐ CIRCUIT COURT ☐ DISTRICT COURT OF MARYLAND FOR _____

City/County _____

Located at _____

STATE OF MARYLAND

OR

Court Address _____

Telephone _____

Case No. C-04-CR-24-0011882-SUPPLEMENTAL

vs.

Maria-Alejandra O'Shaughnessy-Whitfield

Plaintiff/Petitioner

Defendant/Respondent

NOTICE REGARDING RESTRICTED INFORMATION PURSUANT TO RULE 20-201.1

→ Please **DO NOT** use this form to file into the following case types: Adoption, Emergency Evaluation, Extreme Risk Protective Order (ERPO), Guardianship, Juvenile, Gender Declaration, or a Criminal Case in which a Motion to Transfer Jurisdiction to the Juvenile Court is pending. By rule or statute these case types are not subject to inspection.

Title of confidential submission: _____

☐ 1. **RESTRICTED DOCUMENT - The entire document is not subject to inspection.**

- ☐ **Child Abuse/Neglect:** record created by an agency concerning child abuse or neglect required by statute to be kept confidential. *Rule 16-914(d); Family Law Article, § 5-707; Human Services, § 1-202 and § 1-203*
- ☐ **Disability:** Personal information about an individual with or perceived to have a disability. *General Provisions Article § 4-329*
- ☐ **Failure to Pay Rent Actions:** case records shielded pursuant to Code, Real Property Article, § 8-503. *Rule 16-914(s)*
- ☐ **Financial Information:** information about the finances of an individual, including assets, income, liabilities, net worth, bank balances, financial history or activities, or creditworthiness. *General Provisions Article, § 4-336*
- ☐ **Financial Statement:** filed pursuant to Rule 9-202, a Child Support Guidelines Worksheet filed pursuant to Rule 9-206, or a Joint Statement of Marital and Non-Marital Property filed pursuant to Rule 9-207. *Rule 16-914(l)*
- ☐ **Hearing Closed to the Public:** recording/transcript of hearing closed to the public. *Rule 16-914(g)*
- ☐ **Marital Property:** Joint Statement of Marital and Non-Marital Property. *Rule 16-914(l)*
- ☐ **Marriage License Application:** until the effective date of the license. *Rule 16-912(c)*
- ☐ **Medical Report:** or other correspondence from a doctor or health care professional. *Rule 16-914(i)*
- ☐ **Parenting Plan/Joint Statement:** prepared and filed under Rules 9-204.1 and 9-204.2. *Rule 16-914(o)*
- ☐ **Peace Order Denied/Dismissed/Consented - Shielded:** case records shielded under Courts Article § 3-1510(b). *Rule 16-914(c)*
- ☐ **Pregnancy - Marriage License Application:** certification of pregnancy of a person under 18 from doctor or nurse practitioner in an application for a marriage license. *Rule 16-912(c)*
- ☐ **Presentence Investigation Report:** (confidential until entered into evidence) *Rule 16-914(f)(6)*
- ☐ **Protective Order Denied/Dismissed/Consented - Shielded:** case records shielded under FL Article § 4-512(b)(2). *Rule 16-914(c)*
- ☐ **Record of an Administrative Agency Proceeding:** case records shielded when the Administrative Agency Restricted Information Statement indicates the record contains restricted information under Rule 20-101(r). *Rule 16-914(r)*
- ☐ **Refusal to Testify:** case record maintained under Code, Courts Article, § 9-106 of the refusal of an individual to testify in a criminal action against the individual's spouse. *Rule 16-914(f)(5)*
- ☐ **Sealed or Shielded:** (entire document) by court order. *Rule 16-941 & 16-914(k)(1)*
- ☐ **Sealing or Shielding Motion:** while pending, but not to exceed five (5) business days. *Rule 16-941 & 16-914(k)(2)*
- ☐ **Tax Returns:** state and federal tax returns. *Rule 16-914(j)*
- ☐ **Other:** _____ Rule or Statute: _____
- ☐ **DOCUMENT FROM A CONFIDENTIAL CASE TYPE FILED INTO A NON-CONFIDENTIAL CASE TYPE.**
Confidential Case type: ☐ Child Adoption ☐ Emergency Evaluation ☐ ERPO ☐ Guardianship of a Child
☐ Juvenile Court case record ☐ Gender Declaration ☐ Other: (explain) _____

☐ 2. **CONFIDENTIAL INFORMATION - The document itself is subject to public inspection but contains confidential information that is not open to public inspection.**

That information consists of _____

(Give a description of the information and not the actual restricted information.)

The information is made confidential by Rule(s) _____

or by court order dated _____

Pursuant to Rules 20-201.1 and 1-322.1, accompanying the document is a redacted version that does not contain the confidential information.

Date

(410) 555-0199 ext. 4417

Telephone Number

maria.alejandra.oshaughnessy.whitfield@longmailexample.org

E-mail

Fax

Signature

Attorney Number

Maria-Alejandra O'Shaughnessy-Whitfield

Printed Name

1188 Upper Notch Crossing Road, Apartment 14B

Street Address

Prince Frederick, Maryland 20678-2214

City, State, Zip